

26VECV00653 26VECV00653

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-27

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Case Number: 26VECV00653 Hearing Date: July 27, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

LINDSEY MEZORI, an individual,

Plaintiff,

vs.

BOSWELL CONSTRUCTION INC., a California corporation; PURE RECOVERY LLC, a California limited liability company; JON MUT, an individual; MEGAN MUT, an individual; and DOES 1-50, inclusive,

Defendants.

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CASE NO: 26VECV00653

[TENTATIVE] RULING RE: PLAINTIFF'S DEMURRER TO DEFENDANTS' SECOND AMENDED ANSWER TO THE COMPLAINT

Dept. U

8:30 a.m.

July 27, 2026

BACKGROUND

This case is an employment retaliation and harassment case filed by Plaintiff Lindsey Mezori against Defendants Boswell Construction Inc., Pure Recovery LLC, Jon Mut, and Megan Mut.

On January 30, 2026, Plaintiff filed her complaint against Defendants, alleging: (1) retaliation in violation of the Fair Employment and Housing Act ("FEHA"); (2) failure to prevent harassment and retaliation; (3) sexual harassment and hostile work environment; (4) wrongful termination in violation of public policy; (5) negligent hiring, supervision and retention; (6) breach of contract; (7) breach of the implied covenant of good faith and fair dealing; (8) promissory estoppel; (9) promissory fraud; (10) whistleblower retaliation; (11) quantum meruit /restitution; (12) defamation (libel and slander); (13) unfair competition; and (14) intentional infliction of emotional distress.

On March 23, 2026, Defendants filed their original answer to the complaint.

On April 22, 2026, Defendants filed their first amended answer to the complaint.

On May 8, 2026, Defendants filed their second amended answer to the complaint (the "SAA"), asserting 72 affirmative defenses.

On May 18, 2026, Plaintiff filed her demurrer to the SAA.

On July 14, 2026, Defendants filed their opposition brief.

On July 20, 2026, Plaintiff filed her reply brief.

On July 21, 2026, Defendants filed a notice of errata and supplemental brief in support of their opposition.

RULING

The Court strikes, without leave to amend, Defendants' "reservation of rights" language included at SAA, p. 2:5-11. The Court also strikes, without leave to amend, SAA ¶ 2.

The remainder of the demurrer/motion to strike is overruled/denied.

LEGAL STANDARD

A demurrer to an answer may be brought on one of three (3) grounds: (1) failure to state facts sufficient to constitute a defense; (2) uncertainty; and (3) failure to state whether the contract alleged in the answer is written or oral. Code Civ. Proc., § 430.20. Affirmative defenses should be relevant to a plaintiff's legal claims and averred carefully, with as much detail as the facts constituting the corresponding causes of action in the complaint. *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.

DISCUSSION

Plaintiff demurs to the following affirmative defenses in the SAA: 1, 2, 3, 4, 5, 6, 7, 10, 11, 12, 13, 14, 15, 16, 17, 18, 19, 20, 21, 22, 23, 25, 28, 29, 30, 31, 32, 34, 35, 36, 37, 38, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 59, 60, 61, 62, 63, 64, 65, 66, 67, 68, 69, 70, 71, and 72. Plaintiff also moves to strike Defendants' "reservation of rights" language at SAA, p. 2:5-11.

The Court has reviewed and considered the text of the SAA, the text of Plaintiff's original complaint, and each of Plaintiff's seven (7) arguments included with her demurrer. The Court generally finds that the SAA is sufficiently supported by factual allegations that, for purposes of ruling on a preliminary demurrer, explain the bases for each of Defendants' affirmative defenses. For example:

Defendants support their 7th affirmative defense for "good faith" by alleging that they "took actions for lawful business reasons, complied in good faith with all applicable laws and reasonable interpretations of the same pertaining to employment requirements ..., took all reasonable steps to prevent any discrimination and harassment, and have not engaged in violation of law." (SAA, ¶ 7.)

Defendants support their 18th affirmative defense for "impossibility" by alleging that "any duty or obligation they may have had to perform for the benefit of Plaintiff was rendered impossible to perform due to the conduct of Plaintiff, including, but not limited to, Plaintiff's theft of services and Plaintiff's failure to meet performance standards." (SAA, ¶ 18.)

Defendants support their 42nd affirmative defense for "Plaintiff's breach of statutory obligations" by alleging that "Plaintiff breached her statutory duties by engaging in theft of services through bartering Defendant Pure Recovery LLC's services for personal services such as haircuts and restaurant meals without authorization, and by failing to meet performance standards

including, but not limited to, sales requirements. Additionally, Plaintiff admitted that she did not have authority to enter into agreements on behalf of Pure Recovery LLC, as evidenced by her apology for signing a vendor agreement without authorization and with knowledge that she lacked such authority, yet acted beyond the scope of her employment in contravention of her statutory duties." (SAA, ¶ 42.)

For purposes of ruling on a preliminary demurrer to an answer, Defendants' allegations are sufficient to support their proffered defenses in nearly every instance. The Court disagrees with Plaintiff that: (a) the defenses improperly constitute denials, pleading attacks, causation disputes, or damages/remedies arguments mislabeled as affirmative defenses; (b) Defendants fail to plead ultimate facts sufficient to apprise Plaintiff of the nature and basis of the defense asserted; (c) the defenses that are uncertain, overbroad, or pleaded globally without identifying the specific claims, remedies, statutes, contracts, time periods, actors, conduct, or causal theories to which they apply; (d) the defenses are legally inapplicable to Plaintiff's statutory, tort, contract, equitable, or UCL claims as pleaded; (e) the defenses are impermissibly duplicative, redundant, or repeatedly repackage the same alleged misconduct theory under different labels; (f) the defenses are improperly pleaded on information and belief; or (g) the defenses improperly fail to identify specific agreement, provision, condition, consideration defect, payment, release, accord, satisfaction, claim, remedy, or legal effect at issue.

The sole exception is as to Defendants' 2nd affirmative defense, "failure to state a claim." Such a defense is grounds for a demurrer and is thus not properly a pleading allegation to include in an answer. The Court also agrees with Plaintiff that Defendants' "reservation of rights" language included at SAA, p. 2:5-11, is unnecessary surplusage and should be stricken. Otherwise, the SAA is properly pleaded for purposes of ruling on a preliminary demurrer.

In sum, the Court strikes, without leave to amend, Defendants' "reservation of rights" language included at SAA, p. 2:5-11. The Court also strikes, without leave to amend, SAA, ¶ 2. The remainder of the demurrer/motion to strike is overruled/denied.

CONCLUSION

The Court STRIKES, without leave to amend, Defendants' "reservation of rights" language included at Second Amended Answer, p. 2:5-11. The Court STRIKES, without leave to amend, Second Amended Answer, ¶ 2.

Plaintiff is ORDERED to give notice.

DATED: July 27, 2026

Lee Arian

Judge of the Superior Court